

2023 P L C (C.S.) Note 2

[Lahore High Court]

Before Jawad Hassan, J

EHSAN ELAHI

Versus

DISTRICT COLLECTOR and others

Writ Petition No.92292 of 2017, heard on 19th November, 2020.

Civil service---

---Contractual employment---Fake documents---Scope---Petitioner assailed cancellation/ withdrawal of his contract employment vide impugned order on the ground of production of fake middle school certificate---Chief Executive Officer of the District Education Authority had declared the petitioner's middle school certificate as fake---Terms and conditions of the employment contract explicitly showed that the appointment would be considered as void ab initio in case same obtained on the basis of forged/bogus documents or through deceitful means---Employer had the prerogative to get verified any documents/certificates of a person employed at any stage of service for satisfaction even though it was not mentioned in the letter of appointment---Constitutional petition was dismissed, in circumstances. [Paras. 7 & 12 of the judgment]

Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note 1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (C.S.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488 and Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 rel.

Muhammad Shoaib for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General along with Zain-ul-Abidin, Superintendent, D.C. Office, Sheikhpura for Respondent.

Date of hearing: 19th November, 2020.

JUDGMENT

JAWAD HASSAN, J.---Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has prayed for setting aside the order dated 29.08.2017 passed by the Respondent No.2/Commissioner Lahore Division Lahore whereby the appeal filed by him against withdrawing/cancellation of his appointment order was dismissed.

2. The facts tersely revealed from the petition are that the Petitioner was appointed as

Naib Qasid under disable quota vide contract of appointment dated 28.03.2017 with certain terms and conditions mentioned therein. He started to perform his duties and all of a sudden, his appointment was cancelled/withdrawn vide impugned order dated 27.07.2017 on the ground of production of fake middle school certificate. He filed appeal before the Respondent No.2 against aforesaid order which too was dismissed. Hence this petition.

3. Learned counsel for the Petitioner inter alia contended that the impugned orders are against the law and facts as the same have been passed without taking into consideration the available record; that the impugned orders are the result of mis-reading and non-reading of evidence; that no show-cause notice was issued to him before cancellation of appointment letter; that the Petitioner produced his school leaving certificate of seventh class therefore, allegation of bogus middle certificate is totally unjustified; that the appointment letter cannot be withdrawn or cancelled once it is implemented and as such the impugned order is liable to be set aside.

4. Learned Law Officer vehemently contested the arguments advanced by the learned counsel for the Petitioner and contended that the impugned orders have been passed strictly in accordance with law and in line with the verdict of the apex Court. He further stated that the Petitioner was not entitled to appointment as he produced fake middle school certificate in order to procure his appointment.

5. Report and parawise comments were submitted by the Respondent wherein they stated that the Petitioner attached his middle pass certified issued by the Noble Model School Bhikhi Road, Sheikhupura with his application in order to maintain the merit against other candidates. It was further stated that the Petitioner's contract was rightly cancelled in terms of Clause-j of the appointment letter which was accepted by him at the time of appointment.

6. I have heard the arguments of the learned counsel for the parties and have gone through the record.

7. The fact of appointment of the Petitioner as Naib Qasid is not disputed by all hands. His appointment was purely temporary. He, after accepting the terms and conditions of his contract employment submitted his joining report. Specific term in the employment contract, containing certain terms and conditions, were inserted which reads as follows:

"j. That if at any stage, it is discovered that you obtained this appointment on the basis of forged/bogus documents or through deceitful means, your appointment shall be considered to be void ab initio and you shall be liable to be refund all amounts received from the Government as a consequence of this appointment along with registration of F.I.R. and criminal proceedings in addition to such other action as may be taken against you under the law"

The above Clause explicitly shows that the appointment shall be considered as void ab initio in case it was discovered that it was obtained on the basis of forged/bogus documents or through deceitful means. Record reveals that the Petitioner was appointed by the Respondents vide appointment letter dated 28.03.2017. He produced middle school certificate and started his job. The said certificate was sent to Chief Executive Officer,

District Education Authority, Sheikhpura for verification on 02.02.2017. Upon verification, the Chief Executive Officer declared his middle school certificate as fake vide letter dated 10.06.2017 and pursuant to aforesaid verification, his appointment letter was cancelled/withdrawn from the date of issuance. The ground agitated by the counsel for the Petitioner is that the Petitioner never produced this certificate as he appeared in Matriculation Exam through Illama Iqbal Open University and along with his application produced the result intimation card and school leaving certificate of seventh class. The said ground is not believable because the issue in hand is with regard to production of middle certificate and not school leaving certificate or a matriculation result card (in which the Petitioner could not pass certain subjects and is incomplete). The Petitioner has attached with this petition school leaving certificate of seventh class issued by Government High School, Ferozwattuan, District Sheikhpura while the Respondents got verified his middle certificate issued by Noble Model School Bhikhi Road, Sheikhpura which was produced at the time of appointment and later on was declared as bogus. Even otherwise, the employer has the prerogative to get verified any documents/certificates of a person employed at any stage of service for satisfaction even though it was not mentioned in the letter of appointment.

8. From the above facts and circumstances, I am of the considered view the Petitioner, at the time of joining, has accepted all the terms and conditions of his contract employment, cannot resile from the same at belated stage and also it is established from the record that he produced fake middle certificate. I see no illegality or perversity in the impugned orders which have been passed in accordance with law and therefore, cannot be interfered with. I have fortified my view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note-1) in which it has been held as under:

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

9. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758).

10. The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

11. In case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that

"employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

12. In view of above discussion, I am not inclined to interfere with the impugned orders which otherwise have been passed aptly. Resultantly, the instant petition stands dismissed.

SA/E-2/L

Petition dismissed.